

“Civility allows for zealous representation, reduces clients’ costs, better advances clients’ interests, reduces stress, increases professional satisfaction, and promotes effective conflict resolution.” -- OCBA Civility Guidelines

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR DEPARTMENT N14
HON. JULIANNE SARTAIN BANCROFT

Date: Monday, June 15, 2026, 9:00 a.m.

- All counsel and self-represented parties appearing for such hearings should check-in online through the Court's civil video appearance website at <https://www.occourts.org/media-relations/civil.html> prior to the commencement of their hearing. Once the online check-in is completed, participants will be prompted to join the courtroom’s Zoom hearing session. Check-in instructions and an instructional video are available on the court’s website. A party choosing to appear in person can do so by appearing in the courtroom on the date/time of the initial appearance. All hearings are open to the public. The courtroom doors are open.
- You must provide your own court reporter (unless you have a fee waiver and request one in advance).
- Call the other side and ask if they will submit to the tentative ruling. If everyone submits, then call the clerk. The tentative ruling will become the order. If anyone does not submit, there is no need to call the clerk. The court will hold a hearing. The court may rule differently at the hearing. (See *Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

#	Case Name	Tentative Ruling
101	De la Rosa v. Ford, 2025-01466957	DEMURRER TO FIRST AMENDED COMPLAINT – OVERRULED Defendants Ford Motor Company (“Ford”) and David Wilson’s Villa Ford of Orange (“Villa Ford”) demur to the First Amended Complaint (FAC) of plaintiff Cheryl L. De La Rosa (“Plaintiff”). <u>Song-Beverly Causes of Action</u> Defendants argue the Song-Beverly causes of action are barred by the statute of repose set forth in Code of Civil Procedure section 871.21 because this action was not filed within six years of the original delivery of the vehicle and there are no facts alleged to show that any of the reasons for tolling apply. Section 871.21 does not apply unless a manufacturer elects to be governed by the statute. (Code Civ. Proc., § 871.29(c).) The face of the FAC does not establish that Ford made such an election. Thus, it is not clear from the face of the FAC that section 871.21 applies to Plaintiff’s causes of action. The Court may only consider the face of the pleading or matters outside the pleading that are judicially noticeable. <u>Fourth Cause of Action for Breach of Implied Warranty of Merchantability</u> Defendants contend that the fourth cause of action is untimely under Commercial Code section 2725 because it was not brought within four years after the vehicle was delivered to Plaintiff. A cause of action for a breach of warranty occurs when delivery is made, <u>except</u> that where a warranty explicitly extends to future performance of the goods and discovery of the breach must await the time of such performance the cause of action accrues when the breach is or should have been discovered. (Com. Code, § 2725(2).) Such cause of action must be commenced within four years after the cause of action has accrued. (Mexia v. Rinker Boat Co., Inc. (2009) 174 Cal.App.4th 1297, 1306.) While

the Song-Beverly Act “creates a limited, prospective duration for the implied warranty of merchantability[,] it does not create a deadline for discovering latent defects or for giving notice to the seller.” (Id. at p. 1301.)

Here, Plaintiff alleges that Ford’s concealment of the latent defects of the vehicle and its inability to repair those defects were not discovered until shortly before filing this action. (FAC ¶¶ 34, 39.) Accepting this allegation as true, as the Court must on a demurrer, Plaintiff has adequately alleged that she could not have discovered the breach of warranty earlier despite reasonable diligence. (Fox v. Ethicon Endo-Surgery, Inc. (2005) 35 Cal.4th 797, 808.) Because Plaintiff has alleged tolling under the delayed discovery rule, the FAC does not establish on its face that the fourth cause of action is time-barred.

Fifth Cause of Action for Negligent Repair

Defendants argue this cause of action is barred by the economic loss rule.

The economic loss rule provides that, “[i]n general, there is no recovery in tort for negligently inflicted ‘purely economic losses,’ meaning financial harm unaccompanied by physical or property damage.” (Sheen v. Wells Fargo Bank, N.A. (2022) 12 Cal.5th 905, 922.) “[T]he rule functions to bar claims in negligence for pure economic losses in deference to a contract between litigating parties” so as to prevent the law of contract and the law of tort from dissolving one into the other. (Ibid.)

The economic loss rule, however, does not bar all cases involving the negligent performance of services. “A contract to perform services gives rise to a duty of care which requires that such services be performed in a competent and reasonable manner.” (North American Chemical Co. v. Superior Court (1997) 59 Cal.App.4th 764, 774.) “A negligent failure to do so may be both a breach of contract and a tort. [Citation.] In such a hybrid circumstance, the plaintiff is entitled to pursue both legal theories until an occasion for an election of remedies arises. [Citation.]” (Ibid.) The economic loss

rule does not apply in cases involving the negligent performance of services that results in foreseeable economic loss. (Id. at pp. 781-785.)

Here, the FAC alleges that Villa Ford breached its duty to use ordinary care and skill in repairing the subject vehicle. (FAC ¶ 75.) Such alleged negligent failure to perform repair services in a competent and reasonable manner may form the basis for the tort of negligence.

Sixth Cause of Action for Fraudulent Concealment

Defendants argue this cause of action is barred by the statute of limitations and economic loss rule, fails to allege facts with sufficient specificity, and fails to allege any duty to disclose.

As discussed above, Plaintiff's allegations regarding delayed discovery are sufficiently alleged. Thus, Defendants' argument regarding the three year statute of limitations is rejected.

As to specificity, while fraud causes of action generally must be pled with a heightened degree of specificity, this level of specificity may not be required in cases involving nondisclosure, such as here. (Alfaro v. Community Housing Improvement System & Planning Assn., Inc. (2009) 171 Cal.App.4th 1356, 1384.)

Plaintiff alleges that she entered into a warranty contract with Ford when she purchased a 2017 Ford Edge. (FAC ¶ 7.) The vehicle was manufactured and/or distributed by Ford. (Ibid.) After the purchase, defects and nonconformities manifested themselves, including issues with the battery, brake hoses, engine, and acceleration. (FAC ¶¶ 12-15.) Plaintiff further alleges that Ford knew or should have known about the defective nature of its vehicle through sources of available to consumers such as Plaintiff, such as testing data, consumer complaints, and other data. (FAC ¶ 85.) Lastly, Plaintiff alleges that she would not have purchased the vehicle if she had known about the defects at the time of the sale. (FAC ¶ 87.)

The foregoing allegations are sufficient to show a purported defect in the vehicle and the content of omitted facts—the transmission defect which can result in hesitation, delayed acceleration, jerking, etc.—as well as justifiable reliance at the pleadings stage.

The California Supreme Court explained that a duty to disclose a material fact may arise if:

(1) it is imposed by statute; (2) the defendant is acting as plaintiff's fiduciary or is in some other confidential relationship with plaintiff that imposes a disclosure duty under the circumstances; (3) the material facts are known or accessible only to defendant, and defendant knows those facts are not known or reasonably discoverable by plaintiff (i.e., exclusive knowledge); (4) the defendant makes representations but fails to disclose other facts that materially qualify the facts disclosed or render the disclosure misleading (i.e., partial concealment); or (5) defendant actively conceals discovery of material fact from plaintiff (i.e., active concealment). [Citations.] Circumstances (3), (4), and (5) presuppose a preexisting relationship between the parties, such as "between seller and buyer, employer and prospective employee, doctor and patient, or parties entering into any kind of contractual agreement. [Citation.] All of these relationships are created by transactions between parties from which a duty to disclose facts material to the transaction arises under certain circumstances." [Citation.] "Such a transaction must necessarily arise from direct dealings between the plaintiff and the defendant; it cannot arise between the defendant and the public at large." [Citation.]

(Rattagan v. Uber Technologies, Inc. (2024) 17 Cal.5th 1, 40.)

Dhital v. Nissan N. Am. Inc. (2022) 84 Cal.App.5th 828, 844, addressed the issue of transactional relationship and privity in the Song Beverly context:

		At the pleading stage (and in the absence of a more developed argument by Nissan on this point), we conclude plaintiffs' allegations are sufficient. Plaintiffs alleged that they bought the car from a Nissan dealership, that Nissan backed the car with an express warranty, and that Nissan's authorized dealerships are its agents for purposes of the sale of Nissan vehicles to consumers. In light of these allegations, we decline to hold plaintiffs' claim is barred on the ground there was no relationship requiring Nissan to disclose known defects. Here, Plaintiff has alleged a relationship with Ford insofar as the parties entered into a warranty agreement. Further, like in Dhital, Plaintiff alleges that she purchased the vehicle from an authorized Ford dealership. (FAC ¶ 9.) The allegations in the FAC are therefore sufficient under Dhital. The court in Dhital held that, "under California law, the economic loss rule does not bar plaintiffs' claim here for fraudulent inducement by concealment. Fraudulent inducement claims fall within an exception to the economic loss rule recognized by our Supreme Court [citation], and plaintiffs allege fraudulent conduct that is independent of Nissan's alleged warranty breaches." (Id. at p. 843.) Dhital involved allegations that are substantially similar to those raised in the FAC. Defendants to file an answer to the FAC within 20 days. Defendants to give notice.
102		OFF CALENDAR

103	E-COM Solutions, LLC v. Ford Motor Co., 2024-01443588	MOTION FOR PROTECTIVE ORDER – GRANTED Defendant Ford Motor Company (“Ford”) moves for entry of a Protective Order applicable to the production of materials pursuant to Plaintiff E-Com Solutions, LLC’s (“Plaintiff”) Requests for Production of Documents in this matter. (ROA 67.) The unopposed Motion is GRANTED. (Civ. Proc. Code § 2031.060.) In this instance, the parties basically agree a protective order is warranted but disagree about three changes Defendant has made to the LACSC Model Protective Order. (Wond Decl. ¶9,10.) Defendant produced the declaration of its employee Amanda Pannell who attested that the documents at issue contain Defendant’s confidential business information. (Pannell Decl. ¶8.) Ford has met its burden on a protective order covering the specific documents. The requested changes are not so overbearing or prohibitive to Plaintiffs to deny the request. Plaintiff failed to file any opposition. Defendant to give notice.
104		OFF CALENDAR
105	Huamani v. State Farm General Insurance Co., 2024-01432645	MOTION FOR SUMMARY JUDGMENT – DENIED MOTION FOR SUMMARY ADJUDICATION – GRANTED IN PART AND DENIED IN PART Defendant State Farm General Insurance Company (“Defendant” or “State Farm”) moves for summary judgment or, in the alternative, summary adjudication of issues in connection with Plaintiff Diego Huamani’s (“Plaintiff”) First Amended Complaint (“FAC”). The motion for summary judgment is DENIED. The motion for summary adjudication is GRANTED as to the third and fourth issues and DENIED as to the first and second issues.

A defendant moving for summary judgment satisfies their initial burden by showing that one or more elements of the cause of action cannot be established or that there is a complete defense to the cause of action. (CCP §437c(p)(2).) The scope of this burden is determined by the allegations of the plaintiff's complaint. (FPI Development v. Nakashima (1991) 231 Cal.App.3d 367, 381-382 (pleadings serve as the outer measure of materiality in a summary judgment motion)). Once a defendant meets their prima facie showing, the burden shifts to the plaintiff to show by reference to specific facts the existence of a triable issue as to that affirmative defense or cause of action. (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850.)

The FAC alleges causes of action against State Farm for (1) breach of contract and (2) breach of duty of good faith and fair dealing. Plaintiff alleges that “[o]n or about May 3, 2023, Plaintiff suffered an insurable loss of his jewelry kept inside his locked 2015 BMW automobile which was stolen at his gym” and that, at the time of Plaintiff's loss, Plaintiff was covered under a Personal Articles Policy under a contract with defendant State Farm. (FAC ¶ 7.) Plaintiff alleges he made a claim to State Farm, and that the claim was wrongly denied. (FAC ¶ 16.)

Issue No. 1: Plaintiff's first cause of action for breach of contract has no merit because Plaintiff misrepresented or concealed material information in the presentation of the claim.

“To prevail on a cause of action for breach of contract, the plaintiff must prove (1) the contract, (2) the plaintiff's performance of the contract or excuse for nonperformance, (3) the defendant's breach, and (4) the resulting damage to the plaintiff.” (Richman v. Hartley (2014) 224 Cal.App.4th 1182, 1186).

It is undisputed that on May 4, 2023, Plaintiff made a claim to State Farm for personal property that was in the vehicle when it was stolen. (UMF 3.) The claimed personal property included an Audemars Pigeut (“AP”)

watch, a diamond chain, a 14-karat gold chain, a cross, two rings, and a bracelet. (UMF 4.) In effect on the date of the loss was Personal Articles Policy no. 75-KC-S273-7, for scheduled jewelry items (the “Policy”). (UMF 25.) The Policy includes the following condition: “2. Concealment or Fraud. This entire policy will be void if, whether before or after a loss, you have intentionally concealed or misrepresented a material fact or circumstance relating to this insurance.” (UMF 26.) On January 10, 2024, State Farm denied Plaintiff’s claim due to material misrepresentations in the presentation of the claim. (UMF 23.)

“[M]ateriality is a mixed question of law and fact that can be decided as a matter of law if reasonable minds could not disagree on the materiality of the misrepresentations.” (Ibid. (citing *Woods v. Independent Fire Ins. Co.* (11th Cir. 1985) 749 F.2d 1493, 1496; *Long v. Insurance Co. of North America* (10th Cir. 1982) 670 F.2d 930, 934) (emphasis in original).)

In the context of insurance investigations, “a question and answer are material when they relate to the insured’s duty to give to the insurer all the information he has as well as other sources of information so that the insurer can make a determination of its obligations. Thus, materiality is determined by its prospective reasonable relevance to the insurer’s inquiry.” (*Cummings v. Fire Ins. Exchange* (1988) 202 Cal.App.3d 1407, 1416–1417.) Accordingly, “if the misrepresentation concerns a subject reasonably relevant to the insured’s investigation, and if a reasonable insurer would attach importance to the fact misrepresented, then it is material. (Id. at 1417.)

Here, there are triable issues of fact as to whether Plaintiff intentionally concealed or misrepresented a material fact or circumstance relating to this insurance. State Farm contends, essentially, that Plaintiff did not provide satisfactory evidence to demonstrate his purchase of each of the pieces of jewelry at issue (UMF 6-9, 14); that Plaintiff falsely stated that he reported the loss of his jewelry to the police at the time he initially

reported the theft of his vehicle (UMF 10-11, 13-19, 22); and that he falsely stated that he kept his jewelry, except for a cross and yellow gold, in a safe deposit box when not wearing it (UMF 20-21).

Whether the documentation and other evidence submitted by Plaintiff to State Farm to support his claim constitutes an intentional misrepresentation involves credibility determinations that are inappropriate for summary adjudication. Plaintiff has submitted his declaration explaining, for example, that he acquired the Audemars Piguet watch by trading a Cartier and Rolex watch, along with some other jewelry for the AP watch. (Huamani Decl. ¶ 13.) Plaintiff also submits two declarations from Davide Bromelli, who co-owns the Renee de Paris jewelry store where Plaintiff alleges he made the trade for the AP watch. Bromelli's declarations corroborate Plaintiff's declaration about the trade. (See Exhs. B, H, Bromelli Decls.)

While State Farm also contends that Plaintiff's submission of wire transfers and appraisal reports were insufficient to substantiate his claims, State Farm's evidence in this regard does not unequivocally demonstrate a misrepresentation or concealment by Plaintiff.

As to Plaintiff's statements regarding his storage of jewelry in a safe deposit box and whether he initially reported the jewelry theft to the police, the materiality of those statements to the investigation is for a trier of fact to determine.

Accordingly, summary adjudication is DENIED as to Plaintiff's first issue.

Issue No. 2: Plaintiff's second cause of action for breach of the implied covenant of good faith and fair dealing has no merit because Plaintiff cannot prove that State Farm breached the policy contract.

State Farm contends there was no coverage for the alleged loss due to Plaintiff's misrepresentation and concealment of material information in the presentation

of the claim and no benefits were owed under the Policy. (Mtn. at 14:8-10.)

Summary adjudication as to this issue is DENIED for the same reasons discussed above regarding Issue No. 1.

Issue No. 3: Plaintiff's second cause of action for breach of the implied covenant of good faith and fair dealing has no merit because State Farm's handling of Plaintiff's claim was not unreasonable.

Implied in every insurance contract is an implied covenant of good faith and fair dealing that requires the insurer to refrain from injuring its insured's right to receive the benefits of the agreement. (Brehm v. 21st Century Ins. Co. (2008) 166 Cal.App.4th 1225, 1235.) "While an insurance company has no obligation under the implied covenant of good faith and fair dealing to pay every claim its insured makes, the insurer cannot deny the claim 'without fully investigating the grounds for its denial.' [Citation.] To protect its insured's contractual interest in security and peace of mind, 'it is essential that an insurer fully inquire into possible bases that might support the insured's claim' before denying it." (Wilson v. 21st Century Ins. Co. (2007) 42 Cal.4th 713, 720–721.)

The linchpin of a bad faith claim, a claim that an insurer violated the implied covenant of good faith and fair dealing, is that the denial of coverage was unreasonable. (McCoy v. Progressive West Ins. Co. (2009) 171 Cal.App.4th 785, 793.) A trier of fact may determine an insurer acted unreasonably if it denied a claim on a basis unsupported by the facts known to it or contradicted by those facts. (Wilson, supra, 42 Cal.4th at pp. 720–721.) A trier of fact also may find an insurer acted unreasonably if it ignores evidence supporting the insured's claim or conducts an inadequate investigation. (McCoy, supra, 171 Cal.App.4th at p. 793.)

An insurer acts reasonably if it denies a claim based on a "genuine dispute" with the insured over coverage. (Chateau Chamberay Homeowners Assn. v. Associated Internat. Ins. Co. (2001) 90 Cal.App.4th 335, 347.)

Therefore, “[w]here there is a genuine issue as to the insurer’s liability under the policy for the claim asserted by the insured, there can be no bad faith liability imposed on the insurer for advancing its side of that dispute,” even if its coverage decision ultimately was wrong. (Ibid.)

Whether an insurer acted in bad faith “is generally for the trier of fact to resolve, unless, ‘from uncontroverted evidence, a reasonable man following the law can draw but one conclusion on the issue.’ [Citation.]” (Hedayati v. Interinsurance Exchange of the Automobile Club (2021) 67 Cal.App.5th 833, 843.) The same is true of whether an insurer denied a claim based on a genuine dispute over coverage. “‘[A] court can conclude as a matter of law that an insurer’s denial of a claim is not unreasonable, so long as there existed a genuine issue as to the insurer’s liability.’ ” (Fraley v. Allstate Ins. Co. (2000) 81 Cal.App.4th 1282, 1292.)

The FAC alleges that State Farm breached its obligations to act fairly and in good faith by: (a) unreasonably and without proper cause refusing to promptly pay the benefit owed under the Policy; (b) failing to adequately investigate Plaintiff’s claim; (c) failing to timely investigate Plaintiff’s claim; (d) making unreasonable demands regarding the investigation of Plaintiff’s claim; and (e) cancelling Plaintiff’s insurance policy for no justifiable reason to cover up their mistakes in handling Plaintiff’s Personal Articles Insurance Policy. (FAC ¶ 31.)

State Farm has met its moving burden by providing evidence of a thorough investigation of the claims, which appears to have been undertaken in a prompt and reasonably timely manner. (See UMF 55-87.) Further, State Farm submits the declaration of its expert who has reviewed the claim file and opines that State Farm’s handling of the claim was reasonable. (UMF 87.) The evidence submitted shows there was a genuine dispute with the insured over coverage, given numerous factors cited by State Farm.

In opposition, Plaintiff presents various objections within his responsive separate statement. Objections raised in this manner violate CRC 3.1354 and, further, it is unclear which piece of evidence each objection pertains to. Nonetheless, it appears that the objections are primarily targeted at the State Farm claim file (Exhs. 7 and 14) and the report of State Farm's expert, Lola Hogan, which relies heavily on the claim file (Exh. 2). Plaintiff's objections are overruled. The claim file has been authenticated by State Farm's Team Manager, Karen Gillespie, as a business record. Expert Hogan may rely on the contents of the business records for the non-hearsay purpose of showing the effect on State Farm and its decisions in the handling of the claim.

Plaintiff also attempts to raise triable issues of fact. As part of its evidence that its investigation was reasonable, State Farm contends that its investigation revealed multiple prior claims by Mr. Huamani to State Farm and other insurers, including prior claims to State Farm for theft of his jewelry while at a gym. (UMF 60.) In opposition Plaintiff submits evidence that the theft of jewelry while at a gym was investigated by the Cobb County D.A. in Georgia, which resulted in a conviction and another still pending case. (Pl. Response to UMF 60.) However, the cited evidence (Exh. P) is dated August 29, 2024, which is long after the January 19, 2024 denial of Plaintiff's claim. (UMF 83.) Thus, this does not raise a triable issue of fact as to the reasonableness of State Farm's investigation at the time it was undertaken.

Plaintiff also attempts to submit evidence to rebut State Farm's evidence that, at his Examination Under Oath ("EUO"), Plaintiff could not state whether the documentation he submitted reflected his purchase of the claimed jewelry. (UMF 71.) Plaintiff attempts to submit evidence that, although he was unable to state whether the documentation reflected his purchase of the claimed jewelry at the time of the EUO, he has since been able to piece together most of his purchases with the documentation submitted. (Pl.'s Response to UMF 71.) The evidence is Plaintiff's declaration in which he states "I reasonably believe that the wire transfers for

\$11,000.00 (Exhibits "R" and "X") and one of the transfers for \$9,000.00 wires (Exhibits "T", "U" "Z" and "AA") may have been payments for the 14k 25-inch handmade Miami Cuban Link chain, which was purchased on or about December 15, 2022 (Exhibit "K"). The other \$9,000.00 wires may have been for the whit gold rings since they were after the date of purchase of the rings, on December 2, 2022.” (Huamani Decl. ¶32.) State Farm has objected to these statements for lack of foundation and because the statements are based on speculation and conjecture. These objections are sustained, as Plaintiff provides no explanation whatsoever for his newly found belief as to what each of these wire transfers represent.

Plaintiff also attempts to raise a triable issue of fact by contending that he provided receipts, appraisals and wire transfers and bank statements reflecting the purchase of the claimed stolen jewelry. (Pl. Response to UMF 64.) However, examination of Plaintiff's evidence shows that there are no receipts. The only receipt provided is for repair of the AP watch.

Finally, Plaintiff attempts to raise a triable issue of fact by submitting evidence that he acquired the AP watch by trading several pieces of jewelry, “including a Rolex and possibly the Cartier watch, but couldn’t remember” and that he owned the AP watch on March 23, 2023 because it was repaired on that date. (Pl.’s Response to UMF 72.) This does not raise a triable issue of fact as to whether State Farm acted in bad faith, as the evidence does not definitively show that Plaintiff was the owner of an AP watch. State Farm already acknowledged in UMF 72 that Plaintiff claimed to have acquired the AP watch by trading a Cartier watch for it, and that this factor was considered in rejecting the claim. Plaintiff's evidence only further emphasizes that there was a genuine dispute regarding State Farm’s liability under the policy for this item.

Summary adjudication of State Farm’s third issue is GRANTED.

Issue No. 4: Plaintiff's claim for punitive damages has no merit because Plaintiff cannot establish by clear and convincing evidence that State Farm's handling of Plaintiff's claim was malicious, fraudulent, or oppressive.

Civil Code section 3294 provides that "In an action for the breach of an obligation not arising from contract, where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice, the plaintiff, in addition to the actual damages, may recover damages for the sake of example and by way of punishing the defendant."

Here, because the Court grants summary adjudication as to the second cause of action for breach of implied covenant of good faith and fair dealing, and because the only other remaining claim is for breach of contract (a claim for which punitive damages are not available), the Court also GRANTS summary adjudication as to Issue No. 4.

Defendant's objection No. 1 to Exh. A (Huamani Declaration, ¶ 32) is SUSTAINED for lack of foundation, and because it is based on speculation and conjecture.

Plaintiff's objections are OVERRULED as discussed above. Plaintiff's objection to the Orange Police Department report as hearsay is OVERRULED because the report is used for a non-hearsay purpose of showing the effect on State Farm's state of mind.

The Court declines to rule on the remainder of Defendant's objections as they are not material to the disposition of this motion. (CCP §437c(q).)

Plaintiff's request for judicial notice of the indictment and judgment against Jonathan Nathaniel Malave, Jr. is GRANTED pursuant to Evid. Code § 452(d).

Defendant to give notice.

106	JP Morgan Chase Bank v. Robertson, 2024-01450700	MOTON TO SET ASIDE/VACATE DISMISSAL AND ENTER JUDGMENT – GRANTED Plaintiff JPMorgan Chase Bank, N.A. (“Plaintiff”) moves for an order vacating the July 22, 2025 dismissal of this action and entering judgment under the terms of the stipulated settlement of this case. Code of Civil Procedure section 664.6 states: “If parties to pending litigation stipulate, in a writing signed by the parties outside the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If requested by the parties, the court may retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement.” The parties entered into a stipulated settlement on May 14, 2025 and requested that the Court retain jurisdiction to enforce the terms of the agreement. (Declaration of Brian Langedyk, Exhibit A.) Under the agreement, defendant Christopher L. Robertson (“Defendant”) agreed to pay a one-time payment of \$613.03 by May 23, 2025 followed by a minimum of \$860.00 on or before the 23rd day of each and every month commencing in June 23, 2025 until Defendant has paid the entire \$51,353.03 owed to Plaintiff. The agreement provides: “If Defendant fails to make full and timely payment of any installment or if any payment is reversed, Defendant will not be entitled to any deduction, the full remaining balance will be due, and Plaintiff shall be entitled to enter judgment of the Judgment Amount, less credit for payments received by Plaintiff.” The agreement further provides: “Upon a default by Defendant in any payment due to Plaintiff under the terms of this Stipulation, Plaintiff shall apply to the court to have the dismissal without prejudice (if applicable) set aside and vacated and to have judgment entered for the Judgment Amount less credit for payment(s) received by Plaintiff.” Defendant has defaulted on the payment arrangement under the agreement and has paid a total of \$0.00.
-----	--	--

		(Langedyk Decl. ¶¶ 5-6.) The agreement was signed by both parties and filed on June 19, 2025. (ROA 24.) The action was ordered dismissed on July 22, 2025 pursuant to the parties’ agreement and the Court retained jurisdiction under section 664.6. (ROA 32.) There is no indication that the agreement is not valid or binding. The Court finds that Plaintiff has established that the parties entered into a valid and binding settlement agreement and Defendant is in breach of its terms. As a result of that breach, Plaintiff is entitled to have the prior dismissal of this action set aside and judgment entered in its favor. In light of the above, the Motion is GRANTED. The July 22, 2025 dismissal is ORDERED set aside and judgment shall be entered in favor of Plaintiff and against Defendant in the amount of \$51,353.03. Moving party to give notice.
107	Laborin vs. Park, 2024-01422253	MOTION TO BIFURCATE – DENIED Defendant Samuel Park (“Defendant”) moves pursuant to Code of Civil Procedure section 598 and 1048(b) to bifurcate the liability and damages phases of trial. Code of Civil Procedure section 598 provides that the court may order certain issues tried before others “when the convenience of witnesses, the ends of justice, or the economy and efficiency of handling the litigation would be promoted thereby. . . .” (Code Civ. Proc., § 598.) Code of Civil Procedure section 1048(b) states: “[t]he court, in furtherance of convenience or to avoid prejudice, or when separate trials will be conducive to expedition and economy, may order a separate trial of any cause of action . . . or of any separate issue or of any number of causes of action or issues, preserving the right of trial by jury required by the Constitution or a statute of this state or of the United States.” (Code Civ. Proc., § 1048, subd. (b).) Thus, the Court must analyze the following when determining whether to bifurcate issues: (1) convenience of the witnesses, (2) the ends of justice, (3) the economy

and efficiency of handling the litigation, and (4) prejudice.

“A trial court has discretion to determine the order in which claims or issues are bifurcated and determined, and the selection and scheduling of those phased determinations will not be disturbed absent an abuse of that discretion.” (Antelope Valley Groundwater Cases (2020) 59 Cal.App.5th 241, 273.) Court have denied bifurcation when “the issues were not ‘that complex’, and that it had ‘great confidence in the ability of the jury to follow the court’s instructions.’” (Downey Savings & Loan Assn. v. Ohio Casualty Ins. Co. (1987) 189 Cal.App.3d 1072, 1086.)

Here, the Court finds bifurcation unnecessary. Defendant presents no admissible evidence that he will prevail on the merits of liability at trial. Defendant only presents defense counsel’s interpretation of Plaintiff’s deposition testimony.

The Court also finds that this case is not so complicated such that the liability and damages portions of the trial should be tried separately. This is a straightforward motor vehicle negligence case. The Court is confident that the jury will be able to follow the Court’s instructions regarding the analysis to find liability and is not persuaded by Defendant’s argument that they jury may be “influenced by potentially emotional damages evidence.” The Court does not find that Defendant will suffer undue prejudice if the case is not bifurcated.

Likewise, as Plaintiff points out, damages are an element of the causes of action asserted against Defendants. Thus, the Court finds that convenience of the witnesses and economy and efficiency of handling the litigation would not necessarily be served by bifurcating the issues of liability and damages.

Plaintiff to give notice.

108	Mifflin v. Raskin, 2025-01517521	MOTION TO STRIKE PUNITIVE DAMAGES CLAIMS – GRANTED WITH 20 DAYS LEAVE TO AMEND Defendants Joseph Ryan Raskin and Raskin Built, LLC move to strike plaintiffs Justin Mifflin and Camille Birrer’s prayer for punitive damages in Paragraph 14., subdivision a.(2) of their complaint. (ROA 16) Motion to Strike is GRANTED with 20 days leave to amend. (Code Civ. Proc., §435; Civ. Code, § 3294.) Here, there are no detailed facts pled within the complaint at all, let alone facts supporting an intentional tort cause of action or a claim for punitive damages. In the Opposition, Plaintiffs make arguments which are outside the four corners of the Complaint, which is not permissible in connection with a motion to strike. (Code Civ. Proc., § 437; CPF Agency Corp. v. R&S Towing Service (2005) 132 Cal.App.4th 1014, 1032 [grounds for motion to strike must appear on the face of the pleading under attack, or from matter which the court may judicially notice].) The Declaration of Attorney Justin Trad, and exhibits attached thereto were not considered. Defendant to give notice.
109	Miramar Food Hall Real Estate LLC v Big Picture Concepts Design LLC, 2023-01366805	DEFAULT PROVE-UP HEARING
110	Oakland JMO, LLC. vs. Hybrid Battery Place, Inc., 2022-01271085	MOTION FOR SUMMARY JUDGMENT/ ADJUDICATION Defendant State Farm General Insurance Company (“Defendant”) filed a motion for summary judgment as to Plaintiff Hybrid Battery Inc.’s cause of action for breach of the implied covenant of good faith and fair dealing and claim for punitive damages.

		Twice, Plaintiff Hybrid Battery Inc. has attempted to file a Request for Dismissal with Prejudice of the Entire Action. (ROAs 334 and 335.) The first attempt was on 05/28/2026 and the second attempt was on 06/10/2026. Based on these filings, it appears that the motion for summary judgment should be vacated and/or deemed moot. At the hearing, the parties shall be prepared to discuss whether Plaintiff Hybrid Battery Inc.'s operative Complaint should be dismissed.
111		OFF CALENDAR
112	SeaNet Company, Inc. v. Perley, 2024-01398295	DEMURRER TO SECOND AMENDED CROSS-COMPLAINT BY CROSS-DEFENDANTS SEANET & HARRY'S MARINE – SUSTAINED IN PART WITH LEAVE TO AMEND, AND SUSTAINED IN PART WITHOUT LEAVE TO AMEND MOTION TO STRIKE BY CROSS-DEFENDANTS SEANET & HARRY'S MARINE – GRANTED DEMURRER TO SECOND AMENDED CROSS-COMPLAINT BY CROSS-DEFENDANT VOLVO PENTA OF THE AMERICAS - SUSTAINED IN PART WITH LEAVE TO AMEND, AND SUSTAINED IN PART WITHOUT LEAVE TO AMEND MOTION TO STRIKE BY CROSS-DEFENDANT VOLVO PENTA OF THE AMERICAS – GRANTED The underlying complaint alleges a breach of contract by Perley, the buyer of a yacht, to maintain the yacht under a use agreement. Perley filed a cross-complaint against the seller of the yacht (SeaNet), the manufacturer of the yacht's engine (Volvo), and the engine repair facility (Harry's Marine) for various claims involving breach of contract, breach of warranty, fraud, and statutory violations. The second amended complaint (SACC) is the operative pleading here. SeaNet and Harry's filed a

demurrer to the SACC, and a motion to strike the SACC's request for punitive damages. Volvo filed a separate demurrer and a separate motion to strike.

The court denies the request for judicial notice of the bill of sale (attached as ex. 6 to the RJN). This is not a proper matter for judicial notice under Evid. Code section 452, subds. (a), (d), (g), or (h). Therefore, the argument that Perley lacks standing to pursue any of the cross-claims fails on demurrer.

First Cause of Action: Fraudulent Concealment Against SeaNet

This claim is barred by the statute of limitations (CCP 338(d).) The claim arose no later than April 21, 2021, when Volvo Penta told Perley that "commercial use" by SeaNet had invalidated the warranty. Demurrer SUSTAINED without leave to amend.

Second Cause of Action: Fraudulent Concealment Against Harry's Marine

The SACC fails to allege causation and damages. Perley does not allege that Harry's alleged failure to disclose that non-factory approved installation methods would void the manufacturer's express warranty for leisure use or violate the Volvo Penta warranties, which is the damage alleged, caused that damage. In opposition to the demurrer, Perley proposes to amend the cross-complaint to add: he only learned through discovery that Harry's was aware when it proposed to tack weld the exhaust riders that the unconventional repair was necessary to address what Harry's believed was a defect in the new design Volvo exhaust riser assembly installed by Harry's; he only learned through discovery that in Harry's opinion the exhaust riser design was defective; he only learned through discovery that Harry's concealed from Perley that due to the defective exhaust design even tack welding the exhaust mixing elbow could result in the exhaust hose failing with dangerous consequences; he only learned through discovery that Volvo Penta did not conceive, specify, or direct Harry's to tack weld the exhaust but merely consented to Harry's proposed technique; that despite Harry's repair efforts the exhaust defect ultimately caused further exhaust

hose failure; that after retaining counsel in May 2024, Perley discovered Harry's deception as to the dangerous condition caused by the exhaust defect; and that Harry's intentionally concealed from Perley the dangerous condition of the yacht due to the exhaust defect. (ROA 248, Declaration of Julie S. Pearson, ¶ 3(a)-(f), (h).) These proposed allegations do not address the deficiency of the current allegations for the second cause of action for fraudulent concealment as to the alleged concealment. Instead, they appear to seek to add a new claim as to what was concealed, i.e., the dangerous condition of the Absolute 58 due to the exhaust defect. Demurrer SUSTAINED, without leave to amend.

Third Cause of Action: Breach of Contract Against SeaNet

Perley claims that SeaNet breached the contract by failing to provide him with a warranty for the engines. The SACC alleges, however, that SeaNet did provide a manufacturer express warranty for the Volvo Penta D8-ISP800 engines, i.e., a 5-Year/2000 Hour Major Component coverage for the D8-IPS800 engines, as well as a Volvo Penta 3 Year Engine Extended Warranty, i.e., a 3-Year/480 Hour Factory Protection Extended Engine Warranty. Therefore, Perley's own allegations indicate there was no breach. Any allegations that could cure these defects would necessarily be inconsistent with the allegations in the SACC. Therefore, demurrer SUSTAINED without leave to amend.

Fifth Cause of Action for Breach of Contract Against Volvo

The SACC fails to identify specific warranty terms that were allegedly breached, so this claim fails. But the deficiency may be cured by amendment. The demurrer will be SUSTAINED with 20 days leave to amend.

Sixth Cause of Action for Breach of Express Warranty Against Volvo

This claim lacks sufficient factual allegations as Perley does not allege specifically that he notified Volvo within a "reasonable time" or specify the particular warranty provisions that apply to any alleged defect he claims. The deficiency may be cured by amendment. The

demurrer will be SUSTAINED with 20 days leave to amend. As they are currently pled, the court cannot say the fifth and sixth causes of action are duplicative. If Perley chooses to amend one or both of the claims, the court may revisit this argument by Volvo.

Seventh Cause of Action for Breach of Implied Warranty Against SeaNet

This claim is barred by the statute of limitations. (Comm. Code, § 2725.) This claim alleges that SeaNet knew at the time of Perley's purchase of the yacht that he intended to use it for a particular purpose; that SeaNet represented it had specialized skill and judgment to select and furnish a yacht equipped and suitable for Perley's particular purpose upon which Perley relied; that SeaNet knew Perley relied on its skill and judgment in purchasing the yacht; that SeaNet failed to provide a product which was fit for the intended use and the ordinary purposes for which such goods are used; and that as a direct and proximate result of SeaNet's failure to perform the terms of the implied warranties, Perley suffered damages. (SACC, ¶¶ 89-93.) The SACC alleges that following the execution of the Purchase Agreement and Guarantee in March 2017, the yacht was delivered and remained in Florida for about 12 months. (SACC, ¶¶ 15, 21, 29.) The SACC does not allege the implied warranty explicitly extended to future performance of goods. Thus, the breach of warranty occurred when tender of delivery was made, i.e., 2017, and the claim is untimely. Demurrer SUSTAINED without leave to amend.

Eighth Cause of Action for Unfair Competition Against All Defendants

The UCL claim alleges the same acts as the other causes of action. The demurrers to the eighth cause of action are SUSTAINED with leave to amend. The court will give Perley one last chance to state a cause of action under the UCL that meets the requirements of the statute and is not time-barred.

Ninth Cause of action for Violation of the CLRA Against All Defendants

		A claim for violation of the CLRA must be brought within 3 years of the date of the commission of the unfair or deceptive act, method, or practice. (Civ. Code, 1783.) The transactions which are alleged to violate the CLRA are SeaNet's sale of the yacht to Perley, Volvo's provision of express warranties, and Harry's Marine's provision of repair services. The limitations period expired before the cross-complaint was filed. Demurrer SUSTAINED without leave to amend. <u>Tenth Cause of Action for Declaratory Relief Against Volvo</u> Demurrer SUSTAINED without leave to amend. The complaint seeks redress for past wrongs, not a declaration of future rights. <u>Motions to Strike</u> The motions to strike are granted. The court has sustained without leave to amend all causes of action for which punitive damages are claimed. Moving parties to give notice.
113	De La Torre v. Peterson Brothers, 2024-01398380	MOTION FOR TERMINATING SANCTIONS The court's ruling is dependent on whether Plaintiff complied with the court's previous order on or before June 12, 2026.
114		